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Lawmaker proposes banning some food dyes from California school meals

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A California lawmaker has proposed legislation that would ban several food additives from being served in public school meals.

Assemblymember Jesse Gabriel said six synthetic food dyes (Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2, and Green 3) as well as titanium dioxide would not be allowed in school meals if lawmakers approve the proposal.

"California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," said Gabriel. "As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow foods with additives that are linked to cancer, hyperactivity, and neurobehavioral harms to be served to our children. This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

The Food and Drug Administrationsaid the food dyes are commonly used in cereal, beverages, gelatins, puddings, dairy products, and confections.

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While many, like Gabriel, have expressed concerns about these additives, the FDA claims that they are safe for consumption. But the FDA acknowledges that it will continue to adjust its guidance as science warrants.

"The FDA has reviewed and will continue to examine the effects of color additives on children's behavior," the agency said. "The totality of scientific evidence indicates that most children have no adverse effects when consuming foods containing color additives, but some evidence suggests that certain children may be sensitive to them. The FDA will continue to evaluate emerging science to ensure the safety of color additives approved for use."

The Cleveland Clinic says some studies have linked artificial food dyes like Red 40 to hyperactivity. The Cleveland Clinic also says that Red 40 contains benzene, which has been linked to higher rates of cancer.

"I recommend minimizing food dyes in your kids' diets," Cleveland Clinic dietitian Julia Zumpano said. "And if there is a cancer risk in your family, I would encourage you to be even more vigilant in avoiding artificial dyes."

Gabriel is the same assembly member whose bill banning Red Dye 3, along with several other chemicals, from being sold in California became law last year. That law goes into effect in 2027 to allow manufacturers time to adjust their recipes.

His previous proposal banning the sale of Red Dye 3 passed California's Senate by a 33-3 margin before its Assembly approved it 65-6. Gov. Gavin Newsom then signed the bill into law.

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